Private Bag 92300, Auckland 1142
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Auckland Council
Te Kaunihera o Tāmaki Makaurau

In the matter of the Resource Management Act 1991 (The Act)

in the matter of a subdivision of land in the North Auckland Land Registration District shown on DP 541977

CONSENT NOTICE

(Pursuant to Section 221 of the Act)

I hereby certify that THE AUCKLAND COUNCIL granted its consent SUB60315119 and SUB60354496 to the subdivision of Lot 8 DP 208981, Lot 5 DP 198556 and Lot 4 DP 198557 and Covenant over Allotment 32 Puhoi Parish, comprised in Records of Title NA2100/21 Ltd, NA137A/506 Ltd, NA757/204 Ltd ,NA31C/965, NA105B/748, NA127B/901 and NA127B/898 as shown on DP 541977, subject to conditions, including the requirement of the owners of Lots 1, 2 and 4 to 9 to comply with the following conditions on a continuing basis at no cost to the Council.

Monitoring charges. The respective owners of Lots 1, 2 and 4 to 7 shall pay the council monitoring charge or charges to recover the actual and reasonable costs that have been incurred to ensure compliance with the conditions attached to this consent.

Such charge/s shall be paid as part of the resource consent fee and the consent holder will be advised of the further monitoring charge or charges as they fall due. Such further charges are to be paid within one month of the date of invoice.

Engineering Upon the construction of habitable buildings, sufficient water volume shall be provided in accordance with NZFS Fire Fighting Water Supplies CoP SNZ 4509:2008 and that this water supply be accessible for firefighting purposes. Should the water supply be provided by way of tank storage, this storage must be located a safe distance away from any habitable dwelling in accordance with the above CoP.

Any buildings erected on the building sites identified on the plan prepared by Cato Bolam Consultants, job No. 40320, R5, Sheet 2 dated May 2018 shall be subject to the requirements of the report prepared by Engineering Geology Ltd., ref: 8447, dated 14 September 2017, and any subsequent reports. Copies of the said plan and report(s) will be held at the offices of the Council, Centreway Road, Orewa.

All stormwater from buildings and paved areas on Lots 1, 2, 4 and 5 shall be collected and disposed of in accordance with the Stormwater Hydrology Report prepared by Cato Bolam Consultants, ref: 40320, dated 17 October 2017, unless otherwise approved by Council. The collection and disposal system shall be installed in conjunction with the erection of any buildings and shall thereafter be maintained to the specified capacity and standard in perpetuity.

Future owners of Lots 1, 2, 4 and 5 inclusive shall be advised that a physical telecommunication connection has not been provided to these lots and if such service is required, the full cost of providing this service will be met by the owners for the time being. This cost may include the installation of equipment to the utility providers and Council requirements and any growth or other applicable charges.

Access No vehicle access to Lot 1 shall be obtained directly from Remiger Road; all vehicle access shall be obtained from right of way Area EE.

The local road network is expected to be subject to flooding that will periodically limit ingress and egress to Lots 1, 2 and 4 to 8 during and after large rainfall events. The owners of Lots 1-8 shall maintain their respective accesses including the flood markers as and when required.

Landscaping At the time of making a building consent application, the owner of Lot 1 and Lot 2 shall submit for the certification of the Team Leader North- West Monitoring, a landscape planting and management plan (with supporting specifications).

The landscape planting and management plan shall contain:

- A plan of the planted area/s detailing the proposed plant species, plant sourcing, plant sizes at time of planting, plant locations, density of planting, and timing of planting.
- A programme of establishment and post establishment protection and maintenance (fertilising, weed removal/spraying, replacement of dead/poorly performing plants, watering to maintain soil moisture, length of maintenance programme.
- A methodology to demonstrate how the planting will be physically protected.

The purpose of the planting is to reduce the visibility of buildings and site access from public locations (in particular the road) and assist in reducing potential cumulative effects on rural character and amenity, and to assist in locating the buildings and driveways in a more vegetated landscape. This will require planting on the wider site not only in close proximity to the buildings themselves.

Once the landscape planting and management plan is certified, it shall be implemented in the following planting season. It shall be maintained and retained thereafter.

The landscaping within easement areas EE and EA on Lot 6 and on the northern boundary of Lot 5 (amenity planting), approved by resource consent SUB60315119, shall be retained and maintained in perpetuity by the owners of said Lots in accordance with the approved landscaping plan. In the event that the vegetation is dead or dying, it shall be replaced with the same or similar species in the next planting season.

Protection of natural areas The natural areas to be protected on Lot 2 (CX, CW & EK), 4 (CZ), 5 (CO & CY), 6 (CV) and Allot. 32 Parish of Puhoi (CU) shall be protected in perpetuity to the satisfaction of the council's Team Leader, North-West Monitoring.

The owners or their successors in title, of 2, 4, 5, 6 and Allot.32 Parish of Puhoi shall:

- Preserve the native vegetation, wildlife habitats and the natural landscape within the nativeareas to be protected.
- Maintain any stock crossings and/or fish passage(s) in accordance with any easements through the covenant areas.

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- Not (without the prior written consent of the council and then only in strict compliance with any conditions imposed by the council) cut down, damage or destroy, or permit the cutting down, damage or destruction of the vegetation or wildlife habitats within the native areas to be protected.
- Not do anything that would prejudice the health or ecological value of the natural areas to be protected, their long-term viability and/or sustainability.
- Control all invasive plants and control pest animals within the native areas to be protected, in accordance with the Weed and Pest Management Report prepared by Cato Bolam Consultants, dated 1/10/2017.

  Advice Note: Weed Control means, that there are no fruiting and / or flowering individuals of weed species present within the covenant area and any mature weed species present are dead. In addition, there shall be no areas where weed species are smothering and / or out competing native vegetation including suppressing the natural regeneration processes. Control shall be demonstrated to the satisfaction of council's Team Leader, Northern Monitoring or similar position.
- Maintain an ungated stock-proof fence as approved by the council around the perimeter of the areas of native features to be protected on Lots 2, 4, 5, 6 and 9 and Allot. 32 Parish of Puhoi and keep stock out of these areas.
- Not to be in breach of this covenant if any of the native areas to be protected die as a result of fire and/or natural causes not attributable to any act or default on their part for which they are not responsible.

Dated this 15th day of July 2021.

Authenticated by the Auckland Council pursuant to

Section 221(2) of the Resource Management Act 1991

Signed by BRUCE J ANGOVE

Subdivision Advisor

Authorised officer under delegated authority

Reference: CCT90092524-1 SUB60315119